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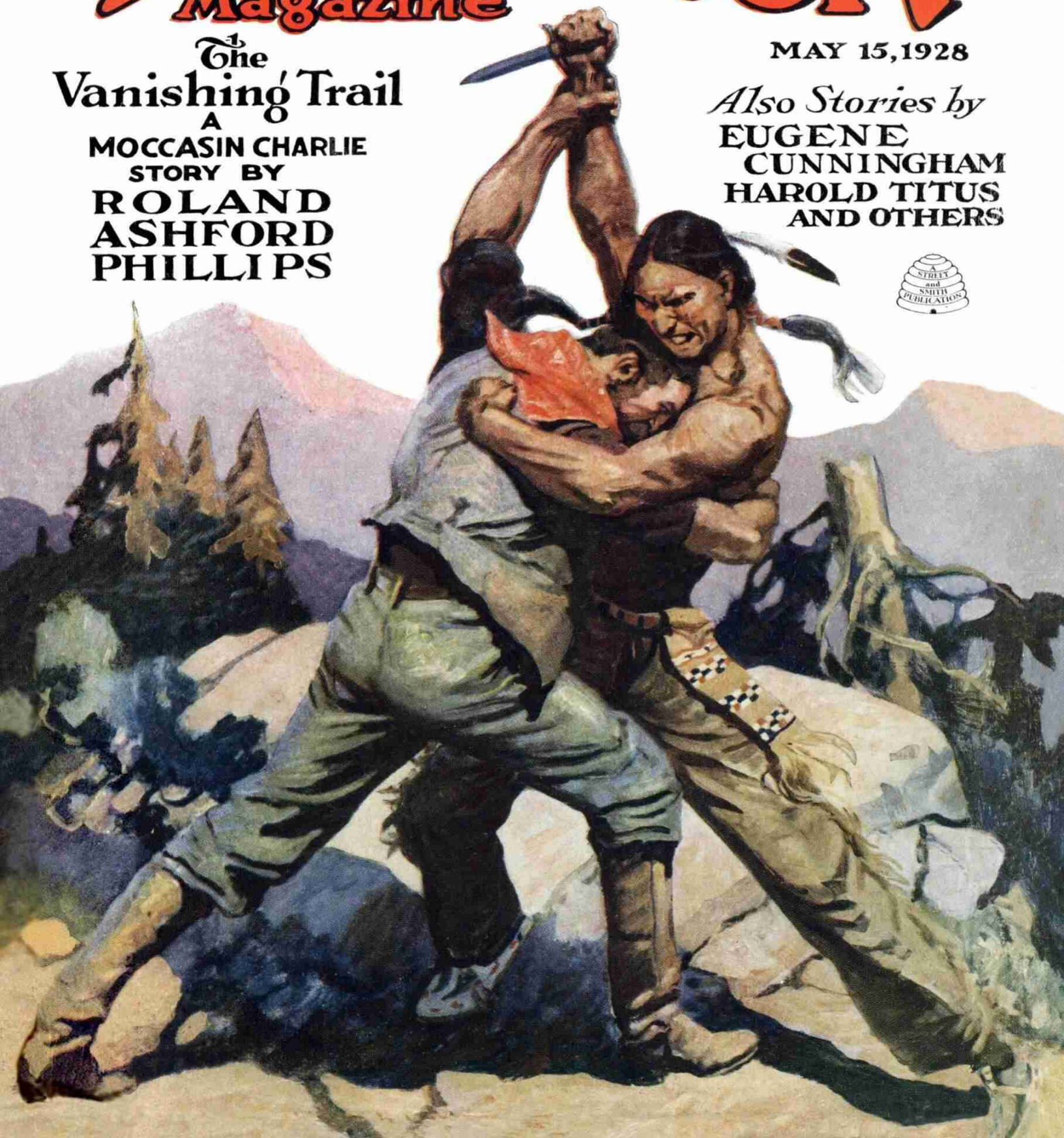
Top-Notch[★]

Magazine

The
Vanishing Trail
A
MOCCASIN CHARLIE
STORY BY
ROLAND
ASHFORD
PHILLIPS

MAY 15, 1928

Also Stories by
EUGENE
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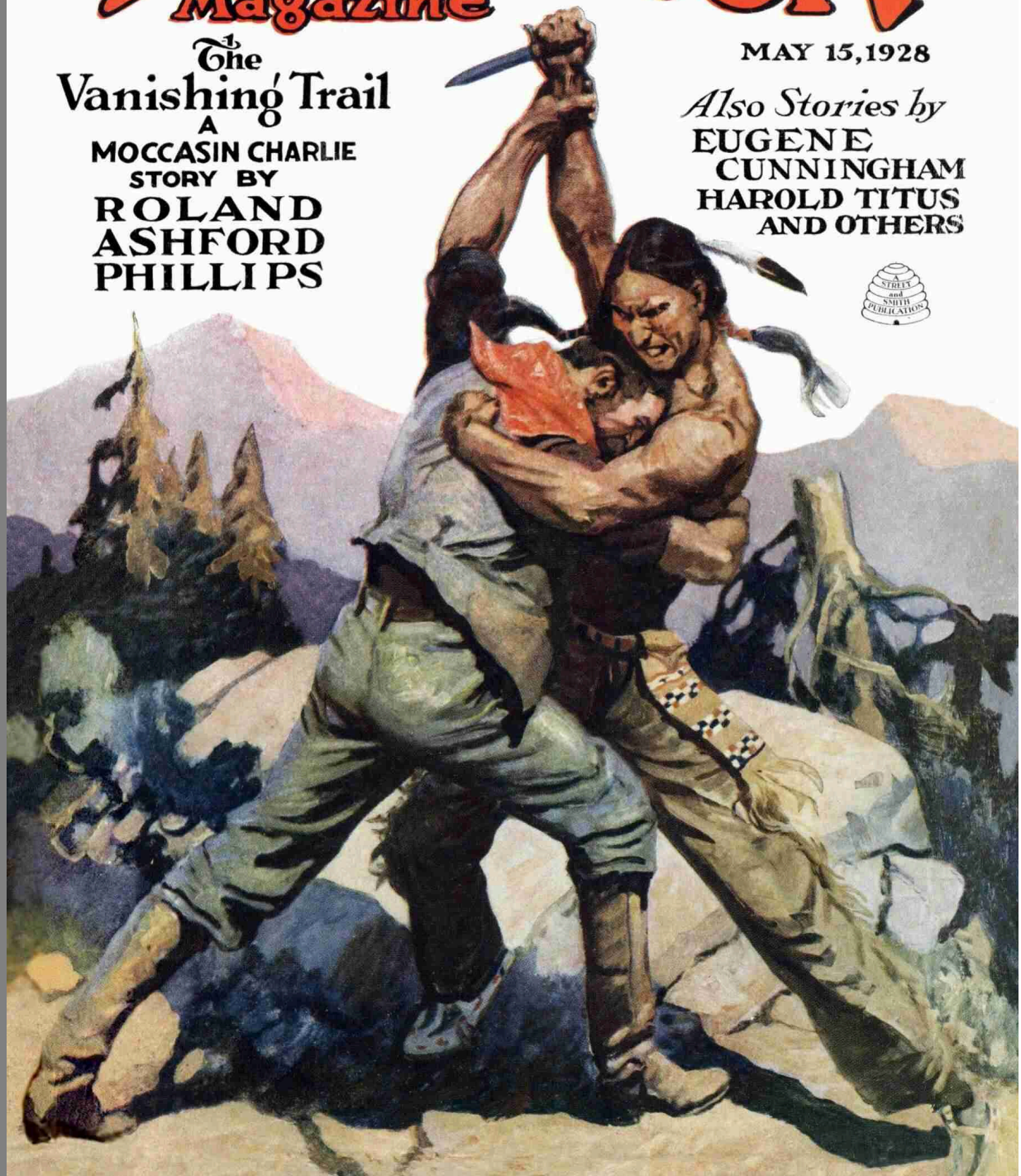
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*** START OF THE PROJECT GUTENBERG EBOOK MOUNTAIN
MEN ***

Mountain Men



by
Eugene Cunningham

MOUNTAIN MEN

CHAPTER I. POACHER'S LUCK.

"The squeezin'est man in Lincoln County!" snarled "Bud" Ranger to himself.

He peered downhill between slim oak saplings, through the spaced trunks of great pines and junipers and mountain ash to the canyon floor. There the little Ruidoso split a smooth, green level—exactly as if a polished bowie knife lay across a billiard table.

"The squeezin'est man!" Bud repeated, aloud, with "Old Ben" Lingo's still, red face in mind.

Then, in a sudden burst of fury born of every petty irritation, all the troubles, caused by the brand-new Lingo-Ranger feud, Bud forgot his need for caution—here on Lingo's Ranch, hunting unlawfully in the dawning. He spat out his opinion of Old Ben, of "Red Ike" Ranger, his own father; of the plain orneriness of the two together.

"Bud!" came "Brother" Ranger's anxious whisper from behind him. "You tryin' to raise the country or somethin'? They could hear you in Roswell! Anyway, quit talkin' through your hat. You're sayin' a lot o' things you don't mean.

"You're sore, 'cause this feud has split up the families an' you can't see Sudie May. You know blame' well Ben Lingo ain't half so bad as he's painted. Ben wants what's due him an' a little interest—an' he gets it! An' the reason folks talk against him is because they're like pa—plumb jealous of a rich man!"

Bud shrugged his shoulders impatiently, squatting on heels, a slender, muscular statue, with keen, aggressive brown face outthrust. With Savage .250-3000 across his knees, ancient gray Stetson pushed back upon his flaming hair, he stared with narrowed blue eyes up and down the canyon, alert for sight of Lingo cowhands.

"Nobody in sight. Reckon we can cross over," he growled finally.

But he made no move to go down the slope. Instead, he stared at the green canyon bottom, starred with daisies. He knew it all so well! Upon the

trail along the little river, he and Sudie May Lingo had ridden stirrup to stirrup since they were kids.

There was Deep Hole, below Monument Rock, where many and many a time they had whipped rainbows from water to frying pan, almost. Sudie May—there wasn't a girl in Lincoln County—in all New Mexico—fit to be mentioned in the same breath with her, to Bud Ranger's notion. And now Red Ike, his father, had had to fall out with her father over some petty money matter. Beaten in a trade, he was furious and had promised to shoot Ben Lingo on sight.

Behind Bud, Brother waited sympathetically. Before the dawn, they had come across the hills from the poverty-stricken little Ranger Ranch against the Mescalero Reservation fence. Crouched on the ridge above the Ruidoso's canyon, they had watched Ben Lingo and some Easterner mounting in the dooryard. Like Bud, Brother had seen Sudie May's pink dress flashing past the door and he could guess the bitterness that filled Bud now.

"Goin'?" he inquired softly.

He moved slightly to ease the cramp in a thigh—and forgot, abruptly, to sympathize with Bud. For the carpet of pine needles and dry oak leaves beneath him shot forward. As on a toboggan he slid downhill with his old Winchester waving. Came a crash from beyond the boulder on Bud's right. They had reached the thicket noiselessly, being woodsmen as much as cow-punchers; the buck springing up was only now alarmed.

Bud's Savage flicked up. There were two swishing sounds, almost together, as he pressed trigger twice. The buck staggered, came to his knees, then somersaulted and went stumbling down the steep slope—fifty, seventy-five yards, until the carcass was stopped by a juniper trunk.

Bud grinned boyishly:

"*There's* Aunt Sary's beef for you! Told you! If pa can't afford to butcher a steer for her, I can get meat for the kids as long's I've got a gun. This one shore shoots where you hold it, Brother!"

Brother's reply was a groan of agony. Bud's blue eyes came flushing round again. He had a glimpse of Brother's head and shoulders. The head rocked as he stared; Brother's face showed like a sheet of paper against the greenery. Bud sprang up with an oath and scrambled downhill.

“Foot——” breathed Brother, between hard-clenched teeth. “Blame’ thing’s jammed—into some rocks! Gosh!” Then he fainted.

Frantically, Bud dived into the thicket and with his big pocketknife began to hack away the branches about his brother’s feet. The sight of Brother’s predicament nearly turned Bud’s healthy stomach. For his left leg—sickeningly twisted—was jammed between two big boulders.

Desperately, he heaved at the massive rocks, but they were fragments of the mountain, seemingly as immovable as the hills themselves. Gently, then, he caught hold of Brother’s thigh and tugged. But the only result was a groan wrung from the prisoner, who returned to consciousness only to faint again.

Bud studied the crevice into which the leg was jammed like wedge into axe head. Tentatively he chipped at the edges. It *could* be cut, but slowly—all too slowly! He needed a pick or crowbar. But it was ten miles back to their house and this was enemy country. Ben Lingo’s was the nearest house and—there in plain sight on the slope below them was the deer, evidence to damn them.

If the Ranger boys were caught and brought before their father’s enemy, Justice of the Peace Ben Lingo—well, they would shortly occupy a jail cell, Bud decided grimly. For himself, he did not care so much, but he knew that his mother would be heartbroken at the disgrace falling upon Brother, her baby.

“I’m goin’ to steal me a crowbar out o’ Ben Lingo’s tool house!” Bud said grimly to himself. “But first—got to get that buck out o’ sight. Somebody might come up the canyon——”

There was a tiny sound from somewhere up the hill. Bud glared fiercely, but it was not repeated. After a moment, he lowered the Savage—a steer, maybe. But still, he wondered. Then he shrugged. No time to go investigating now.

He moved swiftly downhill to where the buck lay against the tree. He could butcher it in a thicket and hang it up until there was opportunity to come back and carry it to their poor relation, his father’s sister Sary. Bud stuck his knife point into the jugular.

From behind a boulder a gray flannel-clad arm came stealthily. A strong, brown hand closed upon the Savage and lifted it noiselessly, while Bud

worked away all unaware. Then a lean youngster in Stetson to match Bud's own, in overalls jammed hit or miss into high-heeled boots, rose like a cat. Bud's ear caught the tiny sound the man made; he whirled, his hand raking the pine needles where the Savage had been.

"It's gone," the other remarked in a conversational drawl. "I figgered you might make some break like that."

On his haunches, Bud glared up at the other. He was a stranger, but on the buttonless vest was a shiny badge—a deputy sheriff. Imperceptibly, Bud's wiry muscles tightened. He was like a rattler coiling. But before he could launch himself at the deputy's throat, the youngster had made a twinkling motion; a long, blued Colt appeared in his hand, the muzzle pointing at Bud's chest.

"Answer is—don't try it! For a fella couldn't miss, this close!"

Bud's lips curled back in a snarl of impotent fury. He was caught red-handed—literally, just that, for his hands were covered with the buck's blood. He considered flashingly. Here was help. This fellow could give him a hand to release Brother. But that would mean that Brother would be a prisoner, too. Yet, if he said nothing of his brother's presence, that would leave the boy imprisoned until he could come back—which might not be at all soon.

"These Maxim silencers are quite some contraptions, now, ain't they?" grinned the deputy. He was examining the Savage expertly. "But you hadn't ought to go shootin' deer right over a surveyor's head, fella. Bothers him, when he's busy like I was. Why, that dam' buck mighty nigh sat down in my lap. Well—pick her up an' let's hightail it."

"Where to?" But Bud knew well enough that it was to Ben Lingo's. He was merely sparring for time, hoping for the chance to come to grips with this efficient-seeming youngster. Bud felt that he might settle him.

"Why, down to Lingo's. He's the only justice o' the peace *I* know of around here. Would you rather give somebody else your trade?"

Bud stood up, looking vaguely about him. Brother was not in view. If he could only knock that staring pistol muzzle down and make it a battle of fist and skill——

The deputy watched quietly, still with his little mocking smile: "Reckon you won't!" he said after an instant. "I used to be in the Texas Rangers,

fella, before they cut down the force. I've handled quite a corralful o' bad hombres an'—none o' the outfit ever got away. I don't aim to have you nominate yourself No. 1. Rattle your hocks!"

CHAPTER II. BROUGHT TO TRIAL.

There was a snap to his voice now that jerked Bud into obedience. Sullenly, he shouldered the buck and they moved down the slope to the trail along the river. Turning stealthily once or twice, Bud found the deputy's Colt muzzle covering him almost as if it possessed a mind of its own, no matter how the deputy seemed to stare. In Bud there began to grow a very real respect for this lean, brown ex-Ranger. He was such a one as Bud himself.

Moving leisurely, because of Bud's burden and the deputy's high-heeled boots, they came after a couple of miles to the dooryard of Ben Lingo's ranch house—and not once had Bud glimpsed the slightest chance of escape.

As he let the buck slip to the ground, for an instant Bud saw—framed in a window—Sudie May's white face, the hazel eyes widened as she stared. Then it vanished and in the doorway appeared Mrs. Lingo. Her beady old eyes gleamed malevolently at sight of Bud and the deer.

"Well!" she cackled. "If 'tain't that Bud Ranger! Never heard, I reckon, about Herefords havin' white faces. Just got all mixed up an'——"

Suddenly she whirled upon the silent deputy:

"Where's Brother? Brother Ranger? Didn't you get him, too? Oh, you dumb nitwit! You missed this fellow's brother? Why, they trail together all time. Any idiot'd have known that! You just wait, Mr. Hawkins; the judge'll have a few things to say to you. You——"

"Excuse *me*, Mis' Lingo!" the deputy interrupted her stiffly, with lean cheeks reddening. "If the judge has got anything at all to say to me, he can shore say it. Anybody can say anything they want to say. I'll listen. O' course, if I don't like it——"

"Somebody lookin' fer me?" came a level, drawling voice from the house behind Mrs. Lingo.

"It's that Bud Ranger!" shrilled Mrs. Lingo, whirling upon Old Ben. "I thought you was still up the hill. Bud killed a buck this mornin' an'

Hawkins caught him—somehow. But he never caught Brother! I told him _____”

“Excuse *me*, Mis’ Lingo!” Hawkins interrupted her once more. “It’s sort o’ more officiallike if a peace officer makes his own report. Keeps the record a lot straighter, too, lots o’ times——”

“We’ll look into the business, Sally, don’t you worry!”

There was no change in Ben Lingo’s broad, red face as he turned small, round blue eyes upon Bud Ranger.

“We just come in over the back trail,” he explained to Hawkins. “Bring the prisoner into the front room, will you? We’ll hold court there.”

With face grim-set, Bud preceded the deputy into the familiar room—where in the days before the feud he and Sudie May had sat so many, many times. As if his thought of the girl were infectious that——

“Where’s Sudie May, Sally?” inquired Ben Lingo. “No, no! Needn’t mind huntin’ her. I got somethin’ to tell her, that’s all. Find her after while.”

He rolled out, was gone for perhaps five minutes. By his bearing—which was all that one might ever judge by—he was thoughtful when he returned to the “court room.” Bud shot at him a half-curious, half-defiant stare. Then the *clip-clop* of shod hoofs in the dooryard drew Bud’s eyes mechanically to the front window. He stiffened, where he sat upon the piano bench.

Past the window rode Sudie May on her black pony—the very pony which Bud had gentled for her a year before, taking vast pride in his work, putting into the taming of the little black outlaw all that he knew of horse-breaking.

Nor rode the girl alone, now. Her companion—if Bud might trust his brief view of the man—was none other than the too-smooth-tongued, too-handsome, “Slim” Thorne, Ben Lingo’s foreman. Bud had cut him out a year ago. Sudie May had promised faithfully, months before, that she would never be alone with him again. It *might* have been one of the punchers, but Bud had no illusions. He thought he knew Slim Thorne’s gaudy silk shirt, his Stetson, entirely too well.

Sudie May was headed upriver, pushing the black pony to a swift jog trot. Her expression, from the one brief glimpse Bud had had of it, appeared by no means so troubled or sad. It should have been, with him sitting there in her father’s courtroom, waiting to be convicted and slammed the limit. It

seemed to Bud that her face had been oddly intent, as she stared straight ahead—at Slim Thorne.

Bud swore viciously under his breath. There was no light in the brilliant sunshine. There was a bad taste in his mouth, as in other days when he had tanked up on Bart Black's bootleg. The days before Sudie May had straightened him out, waked ambition and hope in him, with the simple declaration that she cared—cared enough to marry him.

Sullenly, he turned back to face the room like a trapped animal. He was ready for anything, however desperate. Ready to snatch Hawkins' long, blue six-gun and start hell popping there in the quiet room. Entered now that portly Easterner whom Bud had marked in the Lingo dooryard, as he and Brother crouched on the ridge above the Ruidoso's canyon.

He was a flabby-bodied, pig-eyed "foreigner" in blue-serge coat, gaberdine riding breeches, and shiny tan boots with ridiculous little brass spurs. He was fat-faced, too, this foreigner, and he had an arrogant trick of thrusting out his swollen chin as if in contempt of the whole world. Instinctively, Bud hated him. He found a savage pleasure in wondering just how far his hard, bony fist would sink into that jellylike paunch.

"What's this? What's this, Lingo?" boomed the foreigner, with that note in his voice that told his expectation—certainty, rather—of a quick, respectful answer. "Holding court, eh? Well, well! What's the charge? Who's this—ah—character?"

"Just a plain violation o' the game laws, Mr. Carter," Ben Lingo explained in his level, emotionless drawl. "Hawkins, here—you know Hawkins—is surveyin' the lines in that west section I'm sellin' you. He caught this boy a-butcherin' a buck——"

"Butchering a buck! On *my* land!" Ferociously, Carter whirled upon Bud, who returned his glare with pawnbroker's interest. "The rascal! He looks a tough customer, all right! Killing my deer. Why——"

Somehow, he managed to make it clear that his ownership of the land made the offense far more serious than it could possibly have been otherwise.

"*Your* deer!" snarled Bud, jerked from the silence he had intended to maintain. "Who the hell gave 'em to you? Your deer! Suppose you figure to round 'em up ever' spring an' brand 'em? Ah, the devil!"

“Order in the court! Order in the court!” Ben Lingo rapped with his knuckles upon the center table. “Order in the court!”

His red face was without change; he looked neither at Bud nor the foreigner, but instead stared blankly at the white-washed adobe wall. But there was a telltale twitching of the throat muscles. Bud began to wonder just how popular this Carter might be, on the Lingo Ranch.

CHAPTER III. MOUNTAIN JUSTICE.

“*Oyez! Oyez! Oyez!*” droned the judge. “I hereby declare this justice court open. Hawkins, state your case against the prisoner.”

“Well, suh, I was runnin’ a line two mile west o’ here. Heard two sort o’ *swishes*! From uphill. Knowed ’em to be gunshots muffled by a silencer. Looked up an’—here comes a fat buck just a-swappin’ ends, straight at me! I squatted down in the bushes an’ waited an’ purty soon along come this fella an’ begun butcherin’ the buck. So I gethered him in an’—here he is an’ yonder’s the buck. Reckon it’d be better off in the ice house, judge, pendin’ settlement o’ the case.”

“Not much settlin’ needed!” snapped Carter, authoritatively. “Killing game out of season, on my land! Too bad the old venery laws don’t hold nowadays. By George! They hung riff-raff like this, in England and France, not so long ago!”

“Shore did!” nodded Hawkins, the deputy, blandly. “*I* read about that in my li’l’ red school books, too. All it took to hang a commoner was just the testimony o’ some—uh—*noble*. Funny old times, wasn’t they? Funny how lots o’ names, to-day, show just about where our great-great-grandfathers stood in the world.

“Take the name ‘Bowyer,’ just for instance: nowadays, it’s just anybody’s name. But them times, it was the name o’ fellas that made bows. ‘Carter,’ too—that was a pore devil that drove a cart for some rich man _____”

“Look here!” snarled Carter, his heavy jowls empurpling like an irate turkey gobbler’s, Bud thought amusedly. “Are you insinuating——”

“Suh,” interrupted Hawkins, very softly, but with a steel-blue eye hard upon the foreigner, “I never insinuate anything. I just don’t do such. I speak my piece right out in meetin’ for the good o’ the congregation’s soul.”

“Order in the court! Order in the court!” droned Ben Lingo, staring hard at the wall again, with that telltale twitch of the throat muscles. “Well, Bud? Anything to say for yourself?”

Bud stared stonily straight ahead. Lot of use to say anything in this court! With the judge his father's bitter enemy, his verdict was sure enough. But, in addition, this fellow Carter would be satisfied with nothing less than the harshest penalty of the law, and Ben Lingo, wanting to unload a section of mountain land upon the foreigner, couldn't afford to cross him.

"Let's see that Savage, Hawkins," commanded the judge, when Bud made no reply. "H'mm—mighty purty gun. This silencer gadget is shore keen. Well, Bud, there's a mighty foul barrel, here—what about it?"

"Nothin' to say!" snarled Bud. "I ain't admittin' an' likewise I ain't denyin' a thing. But I'm remindin' you that this fella never saw me kill that buck. For all he knows, I might just've heard the shots, same as he did, an' come down just to grab the meat for Aunt—just to grab the meat."

"Yep," nodded the judge, without change of expression. "Yep."

Hawkins grinned at Bud, entirely without malice. Carter snorted.

"Likely lie, isn't it?" he snapped. "I think we aren't to be taken in by it, Lingo. He's guilty as hell!"

"It's the best judgment o' this court that you killed that buck, Bud," droned Lingo. "With a rifle like this here, you sure wouldn't miss. Lincoln County knows you ain't much on missin', anyhow. Shootin' an' horse bustin' are the two things nobody in this neighborhood can touch you at.

"No—you wouldn't be over here, packin' a high-powered rifle with a silencer, except to kill a deer—unless 't was to take a shot at me, mebbe?"

He stared very straight and hard at Bud.

"Listen! Any time *I* take a shot at you, it'll be fair an' square!" cried Bud hotly. "It'll be in the open. Anyhow, you an' me got no row, Ben Lingo—not yet!"

"Then 't was the buck you was after," nodded Lingo. "H'mm—it's this court's judgment that you're guilty as charged. The lawr says the first offense shall be punished by a fine o' fifty dollars or by appropriate term o' imprisonment. Take charge o' the prisoner, Hawkins. Take the deer to my ice house, too. Lawr says it has got to be destroyed or give to the pore. I reckon we can find some pore family that'll be glad to have it——"

Inquiringly, he looked at Carter, who nodded vigorous approval of the heavy fine.

Bud was white-faced. He was going to jail. No Ranger had ever known that shame. He had always known, of course—for this was by no means the first, or the tenth, buck he had killed out of season—that “the lawr” provided fine or jail term for violation. But when old Bart Black was deputy game warden, he had more than once loaned Bud a horse to pack home venison; had himself taken each time a quarter of the kill.

Game laws were hardly considered by these mountain men, descendants of the independent pioneers who had tamed the hills. A deer was to them, as it had been to their grandfathers, *meat* and that was all. When the deer fed upon their pastures, it was pretty hard lines if a fellow couldn’t kill one, occasionally.

To make matters worse for Bud, there was Brother, still imprisoned on the mountain. No chance to get away from this efficient ex-Ranger lounging behind him, to release Brother. No—there was nothing to do, now, but throw himself and Brother into the enemy’s hands; to tell of Brother’s predicament. That meant two of them going down to jail.

Bud glared at Ben Lingo. The slick old devil! Sitting up there holding that fat face of his straight as a preacher’s—just as if he weren’t tickled stiff at this chance to hit Red Ike Ranger through his son.

“Couple of months in the cooler is just what he needs!” Carter said emphatically. “I tell you, Lingo, civilization is certainly coming to this section! I intend to show these people that I, for one, don’t mean to tolerate their wild western ways for one minute. I——”

“Judge Lingo!” Bud interrupted the lecture with a cold-toned call. “’Tain’t in the deal that I have to be talked to death, is it? An’ if we can get out o’ this wind a minute, or stop it, or somethin’, I got to tell you that——”

“Lots o’ time, Bud! Lots o’ time!” interrupted Lingo, impatiently. “Talk to you after a while. Take him outside, Hawkins, will you? Now, Mr. Carter, about them deeds——Will you get the papers out o’ your room, ready for us to go over?”

Carter, after a wrathful glare at Bud, nodded and went out. Ben Lingo came waddling outside, to where Hawkins stood easily alert and not too close to Bud’s clenching and unclenching fists.

“Brother——” Bud began again.

“Ne’ mind! I’ll do a little talkin’, before you start!” grunted Ben Lingo. “Now, you’re owin’ the State an’ this here justice court the sum o’ fifty dollars. Got it?”

“Got nothin’ but the rifle, here. But that’s worth more’n the whole fine.”

“Don’t want the rifle. H’mmm—well, looks like you got to work the fine out, Bud. H’mmm. It’s jail, or else—— You want to bust some horses for me? Five dollars a day till the twenty-five’s worked out?”

“Twenty-five?” repeated Bud, stupidly. “What d’you mean? The fine was fifty.”

“Why, as justice, I take half the fine for my fee. I don’t have to collect it unless I want to an’—I don’t want to, off’n you, Bud. Five dollars a day, until the twenty-five dollars are worked out an’ then——

“If you ain’t takin’ your pa’s war talk too serious—he’ll ca’m down after a spell—how about sixty-five a month an’ house an’ board, as my foreman? You see, Bud, it’s like this: I had to let Slim Thorne go. Sudie May, she never liked him an’ he was no hand with horses. Besides, he was beginnin’ to hit the old red-eye too frequent. So Slim, he went down Roswell way, day before yeste’day——”

Bud gaped at the still, red face, the twinkling little blue eyes: “Well, I—well, if you really mean it, I—I shore live up your street, judge! But now, I got to get upriver, hellbent! Brother is——”

“First thing you do is to get you a horse out o’ my corral an’ ride up toward Monument Rock. You see, Bud, I was on the ridge above there, this mornin’. Seemed to me like there’d been somebody—well, trespassin’. I’m so blame’ fat, these days, I made a noise slippin’ in the bushes, I reckon. Anyhow, you look into it, Bud. I told Sudie May an’ Rod Kendall to ride up that a-way, a while ago, to see about it. If you should happen onto ’em _____”

He turned and waddled hurriedly back to the house. Bud was racing toward the log corral when Ben Lingo’s hail halted him. The fat figure was framed in the doorway, like a great, benignant Buddha:

“Hey, Bud! About that deer—lawr says it has got to go to some pore family. Try to be thinkin’ o’ somebody as really needs it, will you, Bud?”

“An’ say, Bud! If—if you should happen to stumble onto Sudie May an’ Rod Kendall, why, tell Rod I want that he should hightail it back here *right*

now, will you, huh?”

Transcriber's Note: This story appeared in the May 5, 1928 issue of *Top-Notch* magazine.

*** END OF THE PROJECT GUTENBERG EBOOK MOUNTAIN MEN

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